

Nepal Tourism Board Act, 1997

Document type: act
Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs
Chunks merged: 7

????? ?????? ?????? ??, ?????
Nepal Tourism Board Act, 2053

????????? ? ?????????? ?????
Royal Seal and Date of Publication
????? ? ?? ? ??
2053.10.23

????????? ?????? ??
Amending Acts

?. ?????????? ???????????? ??? ????? ?????? ?????? ?????????? ?????? ??, ????? ?????? ? ?? ? ??
1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.07

????? ?????? ?? ??.
Act No. 25 of the year 2053

?????? ??????? ?????????? ?????????? ? ?????????? ?????? ?????? ??
An Act Made to Establish and Manage the Nepal Tourism Board

????????????????? ?????? ?????????????? ??? ?????????????? ?????????? ??? ?????????????? ?????????? ? ?????????? ??????
????????? ?????????????? ??????, ?????????? ??? ?????????????? ??? ?????????????????????? ?????? ?????????????? ?? ?????????? ?
????????? ?????????? ?????????????? ?????? ?????????? ??? ?????????????? ??????????, ?????????? ?????????? ?????? ? ??????????????
????????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????? ? ??????????
????????? ?????????? ?????????????? ?????????????? ?????? ?????????????? ??????????,

Preamble: Whereas, it is desirable to establish the Nepal Tourism Board and make provisions relating to its functioning for the purpose of making maximum increase in national production, foreign currency earnings and creation of employment opportunities by developing, expanding and promoting tourism business while protecting and promoting the natural and cultural heritage and environment of the country, and by developing Nepal internationally as an attractive and reliable tourist destination,

????? ? ?????????????????? ?????????????? ??? ?????????? ?????????????? ?????????????? ?????????? ?????????? ?? ??
????????? ? ? This Act is made by Parliament in the twenty-fifth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev.

?????????????-?
Chapter-1

?????????????????
Preliminary

?. ?????????????? ??? ? ??????????: (?) ?? ????? ??? ?????????? ?????????? ?????? ??, ?????? ?????? ? ? 1. Short Title

and Commencement: (1) This Act shall be called the "Nepal Tourism Board Act, 2053".

(2) This Act shall come into force from the date specified by the Government of Nepal by notification published in the Nepal Gazette. This Act is specified to come into force from Jestha 19, 2054 (Nepal Gazette dated 2054/2/20).

2.

Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Board" means the Nepal Tourism Board established pursuant to Section 3.

(b) "Committee" means the Executive Committee constituted pursuant to Section 9.

(c) "Chairperson" means the Chairperson of the Committee.

(d) "Vice-Chairperson" means the Vice-Chairperson of the Committee.

(e) "Member" means a member of the Committee and such term also refers to the Chairperson, Vice-Chairperson and Member-Secretary of the Committee.

(f) "Chief Executive" means the Chief Executive of the Board appointed pursuant to Section 14.

(g) "Tourist" means a non-Nepali citizen coming to Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. from a foreign country for the purpose of visit.

(h) "Tourism Business" means,-

(1) The business of providing national or international transportation services for tourists,

(2) The business of wholly or partially providing transportation, accommodation, travel arrangements, restaurant services, sightseeing, trekking, mountaineering, hiking, rafting, and other adventure and recreational services to tourists within Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or outside Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. and earning foreign currency in return,

(3) The business of wholly or partially selling retail goods to tourists,

(4) Also includes the work of wholly or partially conducting arts, cultural presentations or any other exhibitions, events, fairs, publicity, and dissemination campaigns for attracting tourists by doing business pursuant to sub-clauses (1), (2) and (3).

(i) "Prescribed" or "as prescribed" means prescribed or as prescribed in this Act or the Rules or Regulations made under this Act.

(?) ???????? ????????, ??????? ??? ?????? ?????? ?????? ?????? ??? ?????????????????
 ?????? ????????? ????????? ?????? ??? ??? ????????? ????????? ????????? ?????? ? (d) To develop Nepal as
 a safe, reliable and attractive tourist destination and establish Nepal's image in the international tourism
 community in a high and dignified manner.

(?) ?????????? ??????? ???? ?????? ???? ?????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? (e) To conduct or cause to conduct action-oriented research as necessary to find solutions to problems arising in the tourism business in order to provide quality services to tourists.

(?) ?????? ?????????? ??????? ???? ?????? ?????????????? ?????????? ? ?????? ???? ???? ?????????? ? (f) To assist in the establishment and development of necessary institutions for the development of tourism business.

7. ????????? ???? , ????????? ? ?????????: ????????? ???? , ????????? ? ????????? ???? ???? ???? ???? ?

6. Functions, Duties and Powers of Board: The functions, duties and powers of the Board shall be as follows:-

(?) ?????? ?????????????? ?????????????? ???? ???? ?????????? ?????????? ?????????? ?????? ?????????? ?? ?????? ?????????? ?????????? ???? ???? ?????????? , ????????? ?? ?????????? ?????????????????? ?????????? ?????? ?????? ? (a) To act on behalf of the Government of Nepal or, with the approval of the Government of Nepal, as a representative of any person, institution or body for carrying out any business related to tourism business.

(?) ?????? ?????????????? ?????????? , ?????? , ?????? , ????????? , ?????????? ???? ?????????? ?????? ?????????????? ?????????????? ?????? , ????????? ???? , ????????? ????????? , ?????????? ?????? ? ????????? ?????????????? ?????????? ?????????? ?????? ?????????? ?????????? ?????????? ?????????? ?????????? ???? ?????????????????? ?????? , ????????? ? (b) To formulate and implement or cause to implement necessary programs relating to infrastructure development, tourism service, facility expansion, human resource development and environmental protection of tourist destinations in relation to the establishment, improvement, development, expansion, promotion and conservation of tourism business.

(?) ?????????????????? ?????? ?????????? ?????????? ?????? ?????????????????? ?????????? ?????? ?????????? ?????????? ?

? ?????????? ?? ?????????? ?????????? ?????????? ?????? ?????????? ?????? ? (c) To participate in the formulation of programs to enhance facilities for tourists and develop Nepal as an attractive tourist destination.

(?) ?????????????????? ?????? ?????????? ?????? ?????????? , ????????? ?? ?????????????????? ?????????????????????? ?????????? ?????? ?????? ? (d) To maintain coordination in the activities of persons, institutions or bodies providing services to tourists.

(?) ?????????? ?????????????? ?????? ? ?????????????? ?????? ?????????? ?????? ?????????????? ???? ?????????? ?????????? ?????? ?????? ?????? ?????????? ?????????? ?????????????? ?????????????????? ?????????????????? ?????? , ????????? ? (e) To prepare the necessary technical and financial bases for the development and expansion of tourism business and to implement or cause to implement programs related to tourism development accordingly.

(?) ?????????? ?????????????? ?????? , ?????????? ? ?????????????? ?????????? ???? ?????????? ?????????????? ?????? ?????????????????????? ?????? ?????????????? ?????????????????? ?????? , ????????? ? (f) To encourage or cause to encourage maximum participation of the private sector in various tourism-related activities for the development, expansion and promotion of tourism business.

(?) ?????????????? ?????????????? ?????????????? ?????? ?????????????? ?????? ?????????????? ? ?????????????? ?????????? ?????? ???? ?????????????????? ?????? ?????????? ? ?????????????????? ?????????? ?????????? , ?????? ??? ?????????????????? ??? ?????? ?????????????? ?????????????????? ?????? ?????? ?????????????????? ?????????????????? ?????? ? (g) To motivate the private sector to make systematic and effective use of existing physical infrastructure related to tourism and to enable tourists to view the country's religious and culturally important sites, high mountain ranges and panoramic natural beauty.

(?) ??????? ? ???? ? ???? ???? ???? ???? ???? ???? ? ? ?, ??? ? ?????
 ????? ???? ????????? ? ???? ???? ???? ???? ???? ???? ? ? ??????
 ?????? ? ? ???? ? ? ???? ???? ???? ???? ???? ???? ???? ???? ? , ???
 ????? ???? ? ? ???? ???? ???? ???? ???? , ????? ? ????? ???? ???? ????
 ????????? ???? ???? ???? ???? ???? ???? ???? ? (h) To progressively develop Nepal
 as an adventurous and attractive tourism center and to conduct or cause to conduct recreational and
 adventurous tourism activities based on water, land and air in various parts of Nepal Deleted by the Republic
 Strengthening and Some Nepal Laws Amendment Act, 2

(?) ?????????????? ??? ??????, ?????? ????, ?????????? ??? ????, ??????, ?????? ?????????????? ?????? ????, ?????????? ??? ?????????????? ?????????? ?????????? ?????????? ?????? ?????????? ?????? ? ????, ?????????????? ?????? ?????? ?????????????????? ?????????? ????, ?????????????? ?????? ? (i) To conduct by itself activities related to international conferences, trade fairs, cultural and youth festivals, sports competitions and other creative and promotional tourism products, and to encourage the private sector to conduct such activities as well.

(?) ?????? ?????????? ??? ?????????????? ?????????? ?????? ??? ? ?????? ?????????? ?????? ?????? ??? ???
 ??? ?????????? ??????? ?????????????? ?????????? ?????????????? ?????? ? ?????????? ?? ?????? ?????????? ??????
 ?????????????????? ?????????? ?????? ?????????? ?????????? ?????????????? ?????????????? ?????? ? (k) To give priority to the
 development of rural tourist destinations in particular while strengthening tourism infrastructure and facilities
 and developing new tourist destinations, and to motivate the local rural community to conduct various rural
 tourism development programs.

(?) ?????? ?????????????? ??????? ??? ??????? ??? ??????? ????????? ?????? ?????? ???? ?????????
 ??? ?????????????? ?????????? ?????????????? ?????????????? ??? ?????????? ?????? ??? ?????????????? ?????????? ??????????
 ?????? ?????? ?????????????? ?????????????????????? ?????????? ?????????????? ?????? ?????????? ??????, ??????? ? (m) To
 expand facilities at sites of religious and cultural importance in a manner to attract more tourists for the
 conservation and promotion of religious pilgrimage sites and the development of religious tourism, as well as
 to develop or cause to develop such sites as international religious centers.

???????????????? ???? ???? ???? ???? ???? ???? ???? ???? ???? ???? ???? ????
 ????? ???? ???? ? (n) To competitively promote tourism in international tourist source markets and
 develop or cause to develop Nepal as a major tourism center of the world.

such as wildlife viewing.

(?) ????? ?????????????? ?????? ??? ?????????? ?????? ?????? ?????????? ?????? ?????????? ?????????? ?????? ? (p) To increase activities related to inter-country tourism based on mutual benefit by coordinating with friendly nations.

(?) ?????? ?? ?????????? ?????? ?????????? ?????? ??????, ?????? ?????????????? ?????????? ??? ?????????????? ??????, ?????? ? (q) To formulate and implement or cause to implement publicity and dissemination programs at various levels for tourism public awareness.

(?) ?????? ?????????????????? ?????????????? ?????????? ?????? ?????? ??? ?????????????????? ?????????? ?????? ?????????????? ?????? ?????? ?????? ?????????? ?????? ? (r) To standardize the services and facilities provided to tourists by tourism entrepreneurs and also make special arrangements for the safety of tourists.

(?) ?????? ?????? ? ?????????? ??? ?????????? ?????????? ?????????? ?????? ?????????? ?????????? ?????????? ?????? ?????????? ?????? ?????????? ?????? ? (s) To have tourism entrepreneurs implement codes of conduct through their respective professional associations in order to enhance the quality of tourism services and facilities.

(?) ?????? ?????????????? ?????????? ?????? ?????????? ?? ?????????????????? ?????????? ?????? ?????????????? ?????? ?????????? ?????? ?????????? ?????? ?????????? ?????? ?????????? ?????? ? (t) To provide assistance in providing necessary training and orientation to individuals or institutions engaged in tourism business regarding the provision of technical knowledge, training and technical assistance.

(?) ?????? ?????????????? ?????? ?????????? ?????? ?????? ?????? ? ?????? ?????????? ?????? ?????????? ?????? ?????? ?????????? ?????? ? (u) To provide necessary suggestions and advice from time to time to the Government of Nepal and the Tourism Council formed by the Government of Nepal for the development of tourism business.

(?) ?????? ?????????????? ?????????????? ?????????????? ?????????? ?????? ?????????????? ?????????? ??? ?????????? ?????????? ?????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ?????????? ? (v) To regulate the quality standards to be adopted by bodies related to tourism business and request the Government of Nepal to take action in accordance with the prevailing laws against bodies that do not provide such quality services.

(?) ?????? ??? ?????? ?????????????????????? ?????????????? ?????????????? ?????????????? ?????????????? ?????????? ?????? ??? ?????????? ?????????? ??????, ?????????? ? (w) To provide or cause to provide necessary services and counseling to tourists and tourism entrepreneurs on matters related to tourism.

(?) ?????? ??????????, ?????????? ??????, ?????? ?????, ?????? ??????